National Company Law Tribunal (Recruitment, Salary and other Terms and Conditions of Service of Officers and other Employees) Rules, 2020

MINISTRY OF CORPORATE AFFAIRS
NOTIFICATION
New Delhi, the 21st January, 2020

[Amended upto date[1]]

G.S.R. 41(E).—In exercise of the powers conferred by sub-section (3) of section 418 and section 469 read with section 466 of the Companies Act, 2013 (18 of 2013), the Central Government hereby makes the following rules, namely:-

1. Short title and commencement.—(1) These rules may be called the National Company Law Tribunal (Recruitment, Salary and other Terms and Conditions of Service of Officers and other Employees) Rules, 2020.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions.—(1) In these rules, unless the context otherwise requires, -

(a) "**Act**" means the Companies Act, 2013 (18 of 2013);

(b) "**Appointing Authority**" means the Central Government or the Authority to whom the powers are delegated by the Central Government for making appointments of officers and employees in the Tribunal by a notification;

(c) " **Tribunal**" means the National Company Law Tribunal constituted under section 408;

(d) "**President**" means the President of the Tribunal.

(e) "**Schedule**" means the Schedules annexed to these rules.

(2) All the words and expressions used and not defined in these rules, but defined in the Act shall have the same meanings respectively assigned to them in the Act.

3. Application.—These rules shall apply to the posts specified in column (1) of Schedule-I annexed to these rules.

4. Initial Constitution.—The incumbent of the post shown in the column 1 of the said Schedule-I, who is holding such post on regular basis by becoming employee/officer of the Tribunal on and from dissolution of Company Law Board shall deemed to have been duly appointed under the Provisions of these rules and service rendered by him/her in said post before the said commencement shall be taken into account for the purpose of rights and privileges as to pension, gratuity and other like benefits.

5. Number of post, classification and level in pay matrix.—The number of post of officers and employees, their classification and level in pay matrix attached thereto shall be as specified in columns (2) to (4) of Schedule-I.

6. Method of recruitment, age-limit, qualifications, etc.—The method of recruitment, age limit, qualifications and other matters relating thereto shall be as specified in columns (5) to (13) of Schedule-I.

7. Appointment.—Appointment of Officers and other employees of Tribunal shall be made by Appointing Authority, provided that the appointments to the posts in Level-11 or above in Pay Matrix of Seventh Central Pay Commission shall be made with the approval of Central Government.

8. Procedure for appointment by direct recruitment.—Tribunal shall invite applications by advertisement on all India basis, for the posts of officers and employees in the Tribunal and shall process for making appointments by the Appointing Authority, through a recognized professional agency having adequate experience in making recruitment in Central Government, Public Sector Undertakings, Tribunals and the like as decided by the Tribunal.

9. Procedure for appointment on deputation basis.—The Tribunal shall invite applications for the posts through wide advertisement including publishing invariably in Employment News. Selection shall be made on the basis of recommendation of the Selection Committee prescribed in Schedule-I for the respective posts.

10. Absorption of employees on appointment on deputation.—(1) Notwithstanding anything contained in the provisions of these rules, the persons appointed on deputation basis, who fulfill the qualifications and experience laid down in these rules and who are considered suitable by Departmental Promotion Committee, shall be eligible for absorption, in respective grade subject to the condition that such persons exercise their option for the absorption.

(2) Such absorption shall also be subject to the condition that their parent departments or cadre controlling authorities do not have any objection to their being absorbed in the Tribunal.

(3) Seniority of officer or employees mentioned in sub rule (1) shall be determined with reference to the date of their absorption to the post concerned.

11. Conditions of service.—(1) The conditions of service of the officers and employees of the Tribunal in matters of pay, allowances, leave and other conditions of service shall be regulated in accordance with such rules and regulations as are for the time being applicable to officers and employees of the corresponding scale of pay of the Central Government.

(2) In matters relating to Provident Fund Scheme, Group Insurance or any other Insurance Scheme, age of superannuation, pension and retirement benefits, the officers and employees of the Tribunal working on deputation basis shall continue to be governed by the relevant rules as applicable to them in their parent Ministry or department or organisation.

(3) The Tribunal shall recover contributions toward such schemes from their salary and remit the amount immediately to the lending Ministry or department or organisation and any loss of interest on account of late remittance shall be borne by the Tribunal.

(4) The officers and employees of the Tribunal shall have the option to avail medical facilities as per their entitlement in the parent organisation or as specified in Schedule-II annexed to these rules.

12. Accommodation.—The officers and employees of the Tribunal shall

have the option of claiming House Rent Allowance in accordance with the rate prescribed by the Central Government as applicable to officers and employees of the corresponding scales of pay of the Central Government.

Provided that they shall not be eligible for House Rent Allowance in case they are declared eligible for general pool residential accommodation and occupies such a Government accommodation allotted to them.

13. Disciplinary Proceedings.—The officers and employees of the Tribunal shall be subject to disciplinary proceedings as per rules and regulations applicable to officers and employees of the corresponding level in pay matrix of the Central Government.

14. Disqualification.—No person,-

(i) who has entered into or contracted a marriage with a person, having a spouse living; or

(ii) who, having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to any post in the Tribunal:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

15. Other conditions of service.—Other conditions of service of the officers and other employees of the Tribunal, for which no specific provision or insufficient provision has been provided in these rules, shall be regulated in accordance with such rules and orders, as are, from time to time, applicable to officers and employees of the corresponding level in pay matrix of the Central Government stationed at those places.

16. Power to relax.—Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, in consultation with the President of the Tribunal by order and for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

17. Saving.—Nothing in these rules shall affect reservation, relaxation of age-limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, the other Backward Classes, economically weaker sections, ex-servicemen, and other special categories of persons in accordance with the rules and orders issued by the Central Government from time to time in this regard.

[F. No. A-12018/02/2017-Ad.IV]
GYANESHWAR KUMAR SINGH, Jt. Secy.

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1. No amendment